

**ORDER SHEET**  
**IN THE LAHORE HIGH COURT,**  
**LAHORE**  
**JUDICIAL DEPARTMENT**

**WP No. 23501 of 2026**

Mst. Ayesha Bibi & 03 others  
**vs**  
Judge Family Court & another

| S.No. of<br>Order/<br>Proceeding | Date of<br>order/<br>proceeding | Order with signature of Judge and that of parties or<br>counsel where necessary |
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| 21.04.2026 | Messrs Rab Nawaz Baloch, Haq Nawaz Baloch, Umar Baloch and Faraz Mufti Advocates for petitioners.<br>Mr. Qamar Hanif Ramay, Assistant Attorney General for Pakistan, Syed Hassan Abbas Raza, Dr. Muhammad Azeem Raja, Syed Ali Allow-u-Din, Malik Ali Raza Khokhar, Syed Imran Ehsan, Ch. Imtiazullah Warraich, Sh. Waseem Ahmed, Aitzaz Aslam Chaudhry, Syed Muhammad Haider Kazmi, Muhammad Abu Bakar Attique, Mirza Shahryar Farhan Baig, Syed Nadeem Anwar Naqvi, Faisal Anwar Minhas, Mian Muhammad Nadeem, Sabahat Riaz, Syed Sabahat Hamdani, Ch. Mateen-ul-Haq, M. Haris Jutt and Malik Muhammad Zareef, Advocates.<br>Mr. Muhammad Qamar Zaman Qureshi, Additional Advocate General, Punjab. |
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The petitioners are aggrieved of judgment and decree dated 24th January 2026 passed by learned Judge Family Court, Lahore, whereby their suit for recovery of maintenance allowance in favour of petitioner No. 1 wife and petitioner Nos. 2 to 4 minor children at the rate of Rs.20,000/- per month each with 10% annual increase, has been dismissed for want of evidence. The petitioners through this constitutional petition seek setting aside of the said judgment with one opportunity to lead further evidence.

2. At the very outset, the learned counsel for the petitioners has been confronted that a judgment and decree has been passed whereby suit for maintenance allowance filed by the petitioners has been dismissed and the said decree is required to be challenged by filing an

appeal before the Appellate Court, hence, this petition at this stage is premature, the learned counsel states that as no decree was passed in the case as the suit had been dismissed and the order whereby evidence had been closed would be treated as an interlocutory order and was challengeable before this Court as no appeal was maintainable against said interlocutory order under the provisions of Section 14(3) of the Family Courts Act, 1964 (“Act”). Further states that the case had been fixed for payment of interim maintenance allowance of the minors, therefore on the said date, the evidence of the petitioners could not have been closed.

3. The Impugned order, whereby judgment and decree has been passed against the petitioners dismissing their suit, shows that four issues including two main issues had been framed by the court. The said two main issues were as follows:

- 1- *Whether plaintiffs are entitled to recover maintenance allowance from the defendant, if so, at what rate and for which period? OPP*
- 2- *Whether the suit of the plaintiff is false, frivolous, vexatious and plaintiffs have no locus standi to file the instant and the same is liable to be dismissed? OPD*

4. The petitioners were unable to produce evidence despite various opportunities granted by the court and through the impugned judgment, the court decided the issue No.1 against the petitioners by observing as under:-

*“6. Onus to prove this issue was placed upon the plaintiff. Perusal of the record shows that sufficient opportunities were given to the plaintiff for production of evidence but despite of this plaintiff remained failed to produce the same and resultantly right of plaintiff to adduce evidence was closed. In support of this issue there is nothing available on the record, so this issue is hereby decided against the plaintiff.”*

5. On the issue No. 2 it was observed that as the suit of the plaintiff was being dismissed for want of evidence, therefore there is no need for summoning the defendant

for recording of evidence. On the basis of the aforesaid observations, the suit was dismissed. However, the corresponding short order passed by the court on the same date showing the proceedings pending before this court resulting in dismissal of the suit is reproduced below for perusal.

*'Today the case was fixed for evidence of the plaintiff with last opportunity as well as payment of interim maintenance allowance. Defendant in person ready to pay maintenance but nemo for plaintiff to receive the same since last date. Evidence of the plaintiff is not present. Record depicts that consolidated issues were framed on 12.07.2023 and instant suit was consolidated with custody petition of defendant u/s 25 of Guardian & Ward Act 1890 and now instant suit is hereby deconsolidated from this petition. Plaintiff remained failed to comply with the orders of court. Perusal of the record shows that despite availing sufficient opportunity, the plaintiff remained failed to produce her evidence. Even on 07.01.2026, plaintiff was granted absolute last opportunity for plaintiff's evidence but she remained failed to do so. Now the court timing is about to over. No plausible reason has been mentioned. Further wait would be a futile exercise. Under these circumstances, this court has no option but to close plaintiff's right to produce evidence, hence, the same is hereby stuck off. Vide my detailed judgment in English of the even date upon separate paper, **instant suit is hereby dismissed for want of evidence.** Decree sheet be prepared accordingly. Costs shall follow the event. Ahlmad of this court Namely Muhammad Mazhar is hereby directed to consign the file to the record room after its due completion and compilation.*

6. The perusal of the short order shows that case was fixed for not only recording of evidence by the petitioners but also payment of maintenance allowance by the respondent. The respondent is shown to be available in court along with the entire maintenance allowance but there was no one available on the side of the petitioners to receive the same. Hence, the court not only closed the right of the petitioners to lead evidence, but also dismissed the suit filed by them for want of

evidence. In the main case, the petitioners had claimed maintenance allowance for the petitioners who are wife and 3 minor children of respondent No. 2 at the rate of Rs.20,000/- per month each with a 10% annual increase. Had the claim been for maintenance allowance of Rs.5000/- or less, no appeal would have been provided against acceptance or dismissal of the same in the matter and the constitutional petition could directly have been filed before this Court. Reliance is placed on a full bench judgment of this court passed in case titled **Muhammad Aslam versus Judge Family Court, Ferozewala and others** (PLD 2024 Lahore 300). However, where maintenance allowance is claimed at a rate higher than Rs.5000/- per month and whether the said suit is decreed, dismissed, or partially decreed and partially dismissed, appeal against the said decree was available under section 14 of the Act, which remedy is still available to the petitioners. Hence, this petition at this stage is premature.

7. Although learned counsel for the petitioners states that as evidence had been closed through an interlocutory order and they seek another opportunity to lead evidence by setting the same aside, therefore, there is no need to directly file an appeal before the appellate court, I am not in agreement with the said assertion for the reason that the order of closure of evidence has merged in the dismissal of suit for want of evidence which is a final order and decree has been passed on the same date, and the final challengeable order in the matter is not the closure of evidence rather the dismissal of the suit and while challenging the said decree through appeal before the appellate court, petitioners would have remedy to also challenge the closure of their right of evidence by raising said ground. Reliance is placed on the judgment reported as **Khalid Pervaiz Ul Haq and another Versus Mst.**

**Minha Asif and another (PLD 2025 S.C. 847)**, the relevant portion of which is reproduced below:

*“3. Another aspect of the case is that the aforesaid special law restricts and prohibits a challenge made to an interim/ interlocutory order in terms of section 14(3) of the West Pakistan Family Courts Act, 1964. Though there is none but even the jurisdictional defect could also be placed before the court adjudicating the trial of a family suit. The trial under the special law especially under the West Pakistan Family Courts Act, 1964 requires strict adherence which ought to be complied, otherwise the essence and effectiveness of the law will be frustrated. Indeed, if any right is curtailed by any interim order not appealable, it can well be merged with and into final order and would then, if required be available for a challenge along with other grounds.”*

In this regard, reliance may be placed on the judgment reported as **Shamshad Khan & another vs. Arif Ashraf Khan & 02 others** (2008 SCMR 269), wherein it was held that order of striking of petitioner’s right of defence through an interlocutory order had merged in the final judgment and an aggrieved person may challenge interim order while assailing the final judgment in appeal.

It is pertinent to mention here that no interlocutory order survives after the original proceedings come to an end. The interim orders are made in aid of final order that the court may pass and they merge into the final order and do not survive after final adjudication. Reference may be made to the judgment reported as **Mian Azam Waheed and 2 others vs. The Collector of Customs through Additional Collector of Customs, Karachi** (2023 SCMR 1247) and **Gen. (Retd.) Pervaiz Musharraf through Attorney vs. Pakistan through Secretary Interior and others** (PLD 2014 Sindh 389), which judgment was affirmed by the Supreme Court in **Federation of Pakistan through Secretary, M/O Interior Vs. General (R) Pervez Musharraf and others** (PLD 2016 S.C. 570).

8. For what has been discussed above, this petition at this stage is premature and is also disposed of

accordingly with observation that the petitioners, if advised, may seek remedy of appeal before the appellate court against the impugned judgment and decree.

**(MUZAMIL AKHTAR SHABIR)**  
**JUDGE**

**Approved for reporting:**

Naveed\*